THE STATE

Versus

MXOLISI NCUBE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 4 FEBRUARY and 5 MARCH 2026

Assessors: Mr Dewa
Mr Sibanda

Criminal trial

Ms T Mtukwa, for the state
Ms T Mutsambiwa, for the accused

NDUNA J: The accused is charged with murder, it being alleged that on 15 October 2022 he unlawfully caused the death of Muzwiwake Sibanda by stabbing him once with a knife, thereby inflicting injuries from which the deceased died. The accused pleaded not guilty to the charge.

The accused does not dispute that he stabbed the deceased and caused the injuries which resulted in the deceased's death. His defence is that he acted in self-defence when he stabbed the deceased.

In order to prove its case, the State led evidence from Patson Nyathi and Amkele Mguni. Other evidence was admitted through the State summary and consisted of the evidence of Frank Chimapa, Thabo Sithole and Dr Gregori. The evidence of two additional witnesses was expunged from the record as the State failed to locate them. The evidence admitted through the summary does not materially assist in resolving the issues before the court. Frank Chimapa is a police officer who assisted the investigating officer in recording indications. Thabo Sithole is a doctor at Brunapeg Hospital who received the body of the deceased into the custody of the health authorities. Dr Gregori performed the post-mortem examination and his report was tendered into evidence.

The oral evidence before the court therefore came from the two State witnesses, Patson Nyathi and Amkele Mguni. Patson Nyathi is the investigating officer. Amkele

Mguni was with the deceased prior to the altercation which resulted in the deceased's death.

Amkele Mguni's evidence was brief. He testified that he is the uncle of the deceased. According to him, the accused confronted the deceased over allegations that the deceased was involved in a romantic relationship with the accused's girlfriend. The two were at the shops when they called each other outside. Once outside the shop, the accused produced a knife and stabbed the deceased. The accused then fled from the scene but was pursued by members of the public, apprehended, and brought back. The defence challenged this evidence, particularly on the basis that the witness had not initially mentioned that the dispute arose from allegations concerning the accused's girlfriend.

The evidence of Patson Nyathi mainly related to the investigations he conducted, including the recording of a warned and cautioned statement from the accused. The statement was later confirmed before a magistrate. However, the contents of the warned and cautioned statement do not assist in resolving the issues before the court.

The court must therefore examine the defence raised by the accused to determine its credibility. The accused's defence is that he acted in self-defence. He testified that he observed the deceased about to assault a young man and intervened in order to stop the assault. According to the accused, the deceased was not pleased with his intervention and produced a knife. The accused stated that the deceased then wielded the knife against him, whereupon he seized the knife and stabbed the deceased in self-defence. He further stated that he had no intention to kill the deceased and that the fatal injury was inflicted unintentionally.

The defence which is being invoked here is now statutorily provided for in *Part XIII of the Criminal Law (Codification & Reform) Act [Chapter 9:23]*. (the Criminal Code). It is provided as follows:

> 252 Interpretation in Part XIII of Chapter XIV
> In this section–
> "unlawful attack" means any unlawful conduct which endangers a person's life, bodily integrity or freedom.

> 253 Requirements for defence of person to be complete defence
> (1) Subject to this Part, the fact that a person accused of a crime was defending himself or herself or another person against an unlawful attack when he or she did or omitted to do anything which is an essential element of the crime shall be a complete defence to the charge if–
> (a) when he or she did or omitted to do the thing, the unlawful attack had commenced or was imminent or he or she believed on reasonable grounds that the unlawful attack had commenced or was imminent, and
> (b) his or her conduct was necessary to avert the unlawful attack and he or she could not otherwise escape from or avert the attack or he or she, believed on reasonable grounds that his or her conduct was necessary to avert the unlawful attack and that he or she could not otherwise escape from or avert the attack, and
> Paragraphs (a) and (b) substituted by section 31 of Act 9 of 2006.]
> (c) the means he or she used to avert the unlawful attack were reasonable in all the circumstances; and
> (d) any harm or injury caused by his or her conduct–
> (i) was caused to the attacker and not to any innocent third party; and
> (ii) was not grossly disproportionate to that liable to be caused by the unlawful attack.
> (2) In determining whether or not the requirements specified in subsection (1) have been satisfied in any case, a court shall take due account of the circumstances in which the accused found himself or herself, including any knowledge or capability he or she may have had and any stress or fear that may have been operating on his or her mind.

In support of the defence of self-defence, the accused testified that he approached the deceased when the latter was about to attack a juvenile. He stated that he attempted to prevent the deceased from carrying out the attack. According to the accused, the deceased then turned his aggression towards him and was armed with a knife. The accused alleges that he managed to seize the knife which the deceased intended to use against him and used it in self-defence to stab the deceased.

Before addressing the merits of this defence, it is necessary to determine whether the circumstances justify the recognition of self-defence. This requires an assessment of the evidence presented by the State. The only direct evidence regarding the incident was given by Amkele Mguni.

Amkele Mguni is a single witness to the events in question. The law recognises that a conviction may be based on the evidence of a single witness, provided that such evidence is clear and satisfactory in all material respects. The defence correctly referred

to the principles governing the evidence of a single witness and relied on the case of *S* v *Brighton Mubvumba*, where the court addressed the approach to be adopted when evaluating the testimony of a single witness. The relevant portion provides as follows:

> "the danger of the State relying on the evidence of a single witness is that the court ends up with a 'boxing ring' situation because the outcome of the contest hinges on which of the two contestants is believed, namely the State witness or the accused. The problem with the evidence of single witnesses is that there is a danger of reconstruction of evidence after the event and bias among other risks".

The courts has been warned that the test in *R* v *Mokoena 1956 (3) SA 81 (A)* is not to be regarded as an inflexible rule of thumb. There is no magic formula which determines when a conviction is warranted upon the testimony of a single witness. His evidence must be approached with caution and the merits thereof weighed against any factors which militates against its credibility. In essence, a common-sense approach must be applied. If the court is convinced beyond a reasonable doubt that the sole witness has spoken the truth, it must convict, notwithstanding that he was in some respects unsatisfactory. (*S vs Banana 2000 (1) ZLR 607 (S))*

In *S* v *Nyati 1977 (2) RLR 315 (A) at 318E-G*, it was warned that the test in *R* v *Mokoena* (supra) is not to be regarded as an inflexible rule of thumb.

> There is no magic formula which determines when a conviction is warranted upon the testimony of a single witness. His evidence must be approached with caution and the merits thereof weighed against any factors which militate against its credibility. In essence, a common-sense approach must be applied. If the court is convinced beyond a reasonable doubt that the sole witness has spoken the truth, it must convict, notwithstanding that he was in some respects unsatisfactory.

Now the cause of the fight which is alleged by the single state witness involves an affair with a girl not named. This was being raised now in the trial. The witness never alluded to the issue of a girlfriend before he takes to the witness stand. There was no way he could not have told the officer who recorded the statement of the girl-friend if ever there was an issue of the girl-friend. It goes back to call for caution in accepting his story. He was a single witness and a relative of the deceased person. The court feels that his testimony does not really qualify to be accepted by the court. When a court has doubts in the evidence of a witness, it means there is a failure on the part of the bearer

of onus in proving his/her case. When that has happened we take the evidence of the defence as the truth. It is that the accused wrestled a knife from the deceased and used it to stab the deceased in self-defence.

Having made this finding takes the court to *Section 254 of the Criminal Law Code*. It states that: -

> 254 When defence of person partial defence to murder
> If a person accused of murder was defending himself or herself or another person against an unlawful attack when he or she did or omitted to do anything that is an essential element of the crime, he or she shall be guilty of culpable homicide if all the requirements for defence of person specified in section two hundred and fifty-three are satisfied in the case except that the means he or she used to avert the unlawful attack were not reasonable in all the circumstances.

The means used by the accused in his defence was not reasonable. He had taken the knife away from the deceased. It follows that the deceased was no longer a danger to the safety of the accused. There was no need to use the same knife to stab the deceased. It follows that the accused on this basis has failed to get a total defence to act in which he is being prosecuted for.

I accordingly find him thus not guilty to murder but guilty to culpable homicide as defined in the act.

Sentence

The accused is a first offender. From the proceedings it is clear that had the accused been charged with the offence for which he has been convicted, he could have pleaded guilty. He has a family of three children and a wife.

What the courts note is that the Sentencing Guidelines provides for a sentence of up to five years in the absence of mitigation which is listed. In this case the accused was actually defending himself from the aggression of the deceased.

It is therefore the court's decision that the appropriate sentence should be 5 years imprisonment. However now that the accused has spent three years imprisonment that must also be taken into account. It follows that the accused must be effectively sentenced to the balance which is two years imprisonment.

Culpable homicide is a very serious offence. It involves the reckless loss of life of an individual. It is the need to protect that life which would have been lost that informs the prosecution of those who cause the death of another recklessly. The court have dealt with the offences in case of this nature previously. In *State* v *Gladys Mutopa* HB 127-17. The accused was sentenced to four years imprisonment which was wholly suspended on conditions the accused does not commit a similar offence. It ought to be noted that the accused in this case was aged 65 years old. When this brought to comparison with the case on hand, the following is noted; that the accused here is a young man. He was engaged in a fight with the deceased. Therefore it is important to note that accused had a sinister contribution to the offence.

It is proper therefore to consider the imposition of a sentence that is reflected in the sentencing guidelines. It must be noted that the state was aiming to prosecute him for the murder of the deceased. That then contributed to his incarceration for the three years. Had the accused been properly charge, his defence amounts to a plea of culpable homicide. It is therefore necessary to impose the 5 years' imprisonment and takes into account the detention of the accused whilst he awaited to be tried. That will leave the accused with a maximum sentence of two years imprisonment.

He is accordingly sentenced to ***2 years imprisonment***

National Prosecuting Authority, state's legal practitioners
Task Vhiki Attorneys, accused's legal practitioners